

IN THE COURT OF APPEAL OF TANZANIA

AT DODOMA

(CORAM: FIKIRINI, J.A., MGEYEKWA, J.A. And MASARA, J.A.)

CIVIL APPEAL NO. 78 OF 2024

ADELICIOUS CHRISPINE NGOWI..... APPELLANT

VERSUS

**IBRAHIM MOHAMED NAWAB..... RESPONDENT
(Arising from the Judgment, Decree and Proceedings of the High Court of
Tanzania Temeke Sub-Registry (One Stop Judicial Centre) at Dar es Salaam)**

(Omari, J.)

dated the 24th day of July, 2023

in

Civil Appeal No. 17 of 2022

RULING OF THE COURT

20th & 31st August, 2026

MASARA, J.A.:

The appellant herein filed an appeal against the judgment and decree of the High Court of Tanzania at Temeke, One Stop Judicial Centre, in Civil Appeal No. 17 of 2022, delivered on 24/07/2023. The High Court confirmed the District Court of Kinondoni's decision appointing the respondent as administrator of the estate of the late Aurelia Chrispin Nawab.

The dispute has its genesis in the administration of the estate of the late Aurelia Chrispin Nawab, who died intestate on 03/05/2014. Prior to her

demise, the deceased had lawfully contracted a civil marriage with the respondent on 22/10/1988. The marriage subsisted until her death but she was not blessed with any child. At the time of her death, the respondent was a retired senior officer of the Tanzania People's Defence Forces (JWTZ), while the deceased was an employee of the National Insurance Corporation, employed as a Life Insurance Manager.

Following the death of the deceased, the respondent petitioned for letters of administration of her estate at Kawe Primary Court in Probate and Administration Cause No. 129 of 2014. On 06/08/2014, the Primary Court appointed him the administrator of the deceased's estate.

Subsequently, the deceased's relatives, including the appellant, approached the Primary Court seeking directives that the relatives of the deceased be included among the beneficiaries of the estate of the late Aurelia Chrispin Nawab. At the hearing, the respondent maintained that he had already distributed the estate to himself, being, according to him, the sole surviving heir of the deceased. Consequently, the probate proceedings were marked closed by the Primary Court.

The learned Primary Court Magistrate advised the appellant and the other relatives, who claimed an interest in the estate, to institute a civil suit

against the respondent personally, if they still were convinced that they are entitled to a share of the estate in question.

Following the advice, one Valentine Chrispine Ngowi and the appellant herein, who are blood sisters, instituted Misc. Application No. 56 of 2017 at the District Court of Kinondoni, seeking directives concerning the distribution of the deceased's estate. The application was dismissed on 29/01/2019 on technical grounds. Dissatisfied with that decision, the appellant and her sister preferred Civil Revision No. 8 of 2019 before the High Court.

In its decision delivered on 24/11/2020, the High Court (De-Mello, J.), found merit in the revision. It quashed the proceedings and set aside the decision of the District Court in Mis. Application No. 56 of 2017. The High Court further quashed the proceedings and decision of the Primary Court in Probate and Administration Cause No. 129 of 2014, which had appointed the respondent as the administrator of the deceased's estate. The parties were consequently advised to commence the probate proceedings afresh before another magistrate having requisite jurisdiction.

It was pursuant to that decision that the appellant instituted Probate and Administration Cause No. 53 of 2021 before the District Court of Kinondoni, seeking to be appointed the administratrix of the deceased's estate. The respondent entered a caveat opposing her appointment. His

major contention was that, as the surviving husband of the deceased, he was the sole heir and a person beneficially interested in her estate and that the appellant, being the deceased's sister, had no beneficial interest therein.

After hearing the dispute, the District Court eventually appointed the respondent as the administrator of the estate. Aggrieved by that decision, the appellant appealed to the High Court, vide Civil Appeal No. 17 of 2022. The High Court (Omari, J.) dismissed the appeal and upheld the decision of the District Court, thereby prompting this second appeal. The appeal premised on six grounds; however, for reasons that will become apparent in the course, we refrain from reproducing all the six grounds of appeal as submitted.

At the hearing of the appeal, the appellant was represented by Ms Velena Clemence, learned Advocate, while Mr. Samwel Magau, also learned Advocate, appeared on behalf of the respondent. At the outset, the Court asked the learned Advocates to address the Court on the competence of the appeal, particularly regarding the name for which the respondent herein was impleaded before the first appellate court and in this appeal.

When she took the floor, Ms Clemence conceded to the fact that the respondent herein was not impleaded as the “administrator of the estate of the late Aurelia Christine Nawab” but in his personal capacity. To her, the

problem emanates from the record of the High Court in Civil Appeal No. 17 of 2022, where the respondent also featured in his personal capacity and the High Court, nevertheless, proceeded with the alleged anomaly to finality. Thus, in her opinion, the appeal before this Court could not be preferred in the names other than the names in the decision which is being challenged in this appeal. She went on to state that, as far as this appeal is concerned, the record is faultless. That, in case the Court was to hold that the respondent was to be appealed against as the administrator of the estate, the Court should deem it appropriate to hold that the High Court decision is invalid and consequently nullify the said decision and the proceedings thereof.

On his part, Mr. Magau was adamant that the appeal herein is improper for citing the respondent in his personal capacity, instead of the administrator of the estate to which he was appointed to administer. He made reference to decisions of this Court in **Registered Trustee of the SOS Children's Villages Tanzania vs Igenge Charles and Others** (Civil Appeal No. 426 of 2018) [2022] TZCA 3122 and **Charles Kyaruzi & Others vs Joseph Nestory Isack & Others** (Civil Appeal No. 699 of 2023) [2026] TZCA 747, to support his argument. He prayed that the appeal be dismissed, as the invalidity of the High Court record was premised on the appellant's failure to properly cite the respondent therein.

In rejoinder, Ms Clemence appeared to have vacated her earlier position. In her view, the cases referred to by Mr. Magau were distinguishable on the basis that the appellant herein does not seek to impugn any act of the respondent done in his capacity as the administrator of the estate but, rather, his appointment to the office of the administrator, which office he is yet to assume.

We have keenly considered the submissions of the parties and the record before us. We are unable to fathom the distinction that the learned advocate for the appellant is putting before us. We notice that, notwithstanding the fact that the respondent had already been appointed the administrator of the estate of the late Aurelia Chrispin Nawab since 14/02/2022 by the District Court of Kinondoni, the appellant's appeal to the High Court in Civil Appeal No. 17 of 2022 was preferred against the respondent in his personal capacity. Needless to state, therefore, that the appellant was the instigator of the said error.

The High Court does not appear to have considered the anomaly in its decision. It proceeded to determine the appeal before it and eventually dismissed the appeal on the basis of the evidence it found credible. The appellant, dissatisfied with the High Court decision, brought this appeal and maintained the respondent in his personal capacity.

We have times without number held that once a person is appointed to administer the estate of a deceased person, he or she cannot be sued in his personal capacity. Any attempt to do otherwise attracts the wrath of having that dispute, be it a suit or an appeal, struck out. In the circumstances, any proceedings instituted against the respondent in relation to the deceased's estate ought to have been brought in his representative capacity as the administrator of the deceased's estate, and not in his personal capacity. The omission is not a mere technicality; it affects the competence of the proceedings and, consequently, the appeal arising therefrom.

In addition to the decisions referred to us by Counsel for the respondent, this position was observed by the Court when it faced an akin scenario in the case of **Eliminata Masinda & Another vs Masweti Masinda & Another** (Civil Appeal No. 491 of 2023) [2026] TZCA 135, where it was held:

"In light of the above, since the appellants' appointment as administrators had been revoked and the respondents were duly appointed as the administrators of the estate of the late Kresent Kwaang' Masinda in accordance to section 71 of the PAA, the appeal before the District Court and High Court ought to be pursued against the respondents in their capacity as administrators of the estate of the said

deceased and not otherwise. Such omission is fatal, and it renders the proceedings, resultant judgment in the District Court and the appeal before the High Court, a nullity. See for instance, ***Evelyne Mbuna v. Joseph Mshana*** (Civil Appeal No. 437 of 2023) [2025] TZCA 684 (3 July 2025).” (Our emphasis)

The Court has consistently maintained this position. See for example the holdings in the cases of **William Sulus vs Joseph Samson Wajanga** (Civil Appeal No. 193 of 2019) [2023] TZCA 92 and **Swalehe Juma Sangawe & Another vs Halima Swalehe Sangawe** (Civil Appeal No. 82 of 2021) [2022] TZCA 595, where the Court underscored the necessity of suing a duly appointed administrator in his capacity as administrator and not in his personal capacity.

It is our firm view that the appellant should not have preferred an appeal against the decision of the District Court while maintaining the respondent’s name as it was when the trial court was considering the caveat against his appointment. Having been duly appointed by the trial court, he ceased to have *locus standi* in his personal capacity. His *locus* germinated into that of the administrator of the estate of his late wife. The contention made by Counsel for the appellant that the respondent has not assumed the office of administrator is neither here nor there. Assumption of the office of

an administrator does not require taking an oath of office, it is assumed the very minute one is appointed to administer the estate.

In **Malietha Gabo vs Adam Mtengu** (Civil Appeal No.485 of 2022) [2023]

TZCA 17318, the Court observed:

"In view of what we have demonstrated, the appellant who was the administrator was wrongly sued by the respondent in an action involving the estate of her deceased father, the proceedings before both tribunals were vitiated and so was the appeal before the High Court."

In the circumstances, we are certain in our minds that the appeal before the High Court and this appeal before the Court are vitiated for having been preferred against a person devoid of *locus standi*, standing on personal capacity. The observed defect is not merely technical. It goes to the root of the proceedings it arose from rendering them incompetent. Where proceedings are instituted against a party who lacks legal standing, the defect is fatal and renders the proceedings a nullity. Any appeal arising from such proceedings is likewise incompetent and cannot be sustained.

For the foregoing reasons, we invoke the powers bestowed upon the Court under section 6(2) of the Appellate Jurisdiction Act, Cap. 141 [R.E. 2023], to nullify the entire proceedings of the High Court and quash its judgment as well as the orders ensuing therefrom. Similarly, the appeal

herein cannot be spared as it was preferred against a wrong party. It is accordingly struck out for being incompetent. Given the circumstances of this case, we make no order as to costs.

Order accordingly.

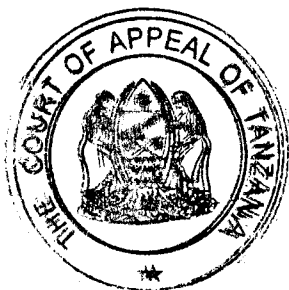
DATED at DODOMA this 28th day of August, 2026.

P. S. FIKIRINI
JUSTICE OF APPEAL

A. Z. MGEYEKWA
JUSTICE OF APPEAL

Y. B. MASARA
JUSTICE OF APPEAL

Ruling delivered virtually this 31st day of August, 2026 in the presence of the Appellant in person, Mr. Samson Joseph Nnko learned Counsel for the respondent and in the absence of Ms. Velena Clemence learned counsel for the appellant though dully notified and Ms. Tabitha Daniel, Court Clerk; being present is hereby certified as true copy of the original.




A. L. KALEGEYA
DEPUTY REGISTRAR
COURT OF APPEAL